



File No.: EXP202208714

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:
FACTS

FIRST: On August 16, 2022, a complaint was filed with the Spanish Agency for Data Protection against ***USER.1.

The reasons for the complaint are as follows:

The complainant, who claims not to be a Twitter user, states the difficulty of reporting on that network a content published on ***DATE.1 by the user ***USER.1 (...), which reproduces a private conversation of a sadomasochistic sexual nature held by the complainant on the gay dating app Grindr, publicly disclosing the content of the conversation, his name, and the image of his profile on this app.

Along with the notification, the following is provided:

- Photograph with a screenshot of the reported Twitter profile (***USER.1)
- Screenshot of the Tweet published on ***DATE.1 by the respondent (***USER.1) where a capture made with a mobile phone is disseminated, showing the text of a conversation along with the photograph of one of the participants (presumably the complainant) and the supposed name of this person: "A.A.A."

SECOND: On August 17, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

THIRD: On August 17, 2022, this Agency received a written statement from the complainant, indicating that in the admission agreement of his complaint before the agency, it is stated that "the complainant, who claims not to be a Twitter user, states the difficulty of reporting on that network a content published on ***DATE.1 by the user ***USER.1 (...), which reproduces a private conversation of a sadomasochistic sexual nature held by the complainant on the gay dating app Grindr, publicly disclosing the content of the conversation, his name, and the image of his profile on this app."

"That as stated in the initial request that this party presented in the complaint, he did not recognize himself as a participant in the conversation but that his photograph was being used, and that this party indicates that the aforementioned profile is using his photograph in relation to said conversation based on sexual practices. Therefore, he requests that this be corrected."

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FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, having knowledge of the following aspects:

On August 17, 2022, an urgent order for the removal of the content was signed and notified to the service provider, TWITTER INTERNATIONAL COMPANY (through TWITTER SPAIN S.L), to remove the reported content within 5 calendar days, and to inform this Agency about the execution of this measure.

On September 5, 2022, after the previous electronic notification was not accessed, it was decided to reiterate the urgent removal order using postal means this time. This reiteration was also refused by the service provider without accessing its content.

After two failed attempts to notify the urgent removal order signed by the director of this Agency, the first of which was made electronically on August 17, 2022, without access to its content (notification expired), and a second attempt at notification by postal means on September 5, 2022, which was also not delivered (notification refused), other contact methods were used to obtain the removal of the

desired content:

On September 1, 2022, the active form on the TWITTER portal for the request for content removal was used.

<https://help.twitter.com/es/forms/safety-and-sensitive-content/private-information>

On the same date, September 1, 2022, the contact form published on the same TWITTER portal was used to contact the Data Protection Officer.

https://twitter.ethicspointvp.com/custom/twitter/forms/data/form_data.asp

On September 19, 2022, a response was received from TWITTER regarding the second of the completed forms, in which the following text was included:

"Hello,

Thank you for contacting us. We recommend that the AEPD use our dpo@Twitter.com as a means of communication with us.

Sincerely,

Twitter Office Of Data Protection"

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On September 21, 2022, an email was sent to the address dpo@twitter.com with the following content: (...)

On September 22, 2022, and in parallel to previous contact attempts with the service provider, it was decided to send an information request to the claimant requesting the following:

- Accreditation that the photo disseminated in the content published on the Twitter profile ***USER.1 and reported in their claim corresponds to their image.

On September 24, 2022, a response was received from the claimant to our information request, providing:

- A copy of their ID with the identifying photograph.
- The original photograph that was published in the screenshot of the reported content and published on the Twitter profile ***USER.1.

They claim that the published content continues to cause them serious reputational and personal harm.

On September 28, 2022, it was verified that the content had already been removed from the reported profile, showing the following message in its place: (...).

Additionally, on October 12, 2022, an email was received from the DPO of TWITTER INTERNATIONAL COMPANY with the following content:

"Dear Sir (...):

We write to you in response to your correspondence of September 21, 2022.

After further review of the Tweet in question ***URL.1, we have removed the content from the platform.

We also reiterate that the integrity of the Tweet that was the subject of the notice will be preserved for any legal proceedings.

We remain at your disposal if you have further questions.

Sincerely,

Office of Data Protection

Twitter International Unlimited Company"

On October 2, 2022, a new information request was made via international certified mail to TWITTER INTERNATIONAL COMPANY, marked by the following line of investigation:

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- To know the identification data of the person holding the profile of ***USER.1.
- The IP address of the user's connection on the date and time when the reported content was uploaded.

On October 21, 2022, a response was received from the provider TWITTER INC to the previous request with the following content:

(...)

Collaboration was requested from the Irish Authority through a voluntary assistance notification (A61); this request was sent on October 27, 2022.

After the voluntary time elapsed without receiving a response to the previous submission from the Irish authority, on February 3, 2023, a reiteration of the requested information was made, receiving a response on the same date, February 3, 2023, with the following content:

"We kindly ask you to contact the Twitter DPO directly for this information request; the email address is dpo@twitter.com."

On February 16, 2023, a second information request was sent via international certified mail to the service provider TWITTER INTERNATIONAL COMPANY, with an email sent in parallel to the Twitter DPO (dpo@twitter.com) requesting collaboration to attempt to obtain the desired information.

According to the postal office, this mailing was delivered on February 28, 2023.

On March 2, 2023, an email was received from the sender support@twitter.com with the following content:

(...)

LEGAL GROUNDS

I

Competence

According to the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, with character.

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subsidiary, under the general rules on administrative procedures."

II

Legality of Data Processing

Including the content of a conversation, the name, and the image of the complainant on Twitter, reproducing a private conversation of a sadomasochistic sexual nature held by the complainant on the gay dating app Grindr, which identifies this person, constitutes the processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds specified in Article 6 of the GDPR. In these cases, as in the one subject to the complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data without any limitations who must demonstrate that they have that consent.

For this processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the GDPR, which states:

<<1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in

order to take steps at the request of the data subject prior to entering into a contract;
c) processing is necessary for compliance with a legal obligation to which the controller is subject;
d) processing is necessary to protect the vital interests of the data subject or of another natural person;
e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.>>

III

Conclusion

The complaint highlighted the difficulty of reporting on Twitter, as the complainant is not a user of that network, a content published on ***DATE.1 by the user ***USER.1, which reproduced a private conversation of a sadomasochistic sexual nature held by the complainant on the gay dating app Grindr, publicly disclosing the content of the conversation, their name, and the image of their profile on this app.

Following the actions taken, the conversation and images have disappeared.

To identify the person who disseminated the images and the conversation subject to the complaint, preliminary investigative actions were carried out, as established in Article 67 of the LOPDGDD, which states the following:

<<1. Before the adoption of the decision to initiate proceedings, and once the complaint has been accepted for processing, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when the investigation of processing involving mass traffic of personal data is necessary.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed twelve months from the date of the decision to accept the complaint for processing or from the date of the decision to initiate it when the Spanish Data Protection Agency acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.>>

As indicated in the Facts of this resolution, it is verified in the contested content, which has already been removed from the reported profile, that the following message is displayed instead: "This Tweet violates Twitter rules"; however, it has not been possible to determine the authorship of that publication.

In accordance with what has been stated, by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day si-

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Following the notification of this resolution, a contentious-administrative appeal may be filed directly before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months starting from the day after the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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